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#	Case Name	Tentative
101.	2021-1185609 Bedi v. Anand	Plaintiff Namrata Bedi's motion to compel defendant Praduman Singh to provide responses to form interrogatories set one, is granted. Defendant is to provide verified responses without objection no later than a date to be determined at the hearing. Plaintiff is awarded sanctions of \$600 against Defendant, to be paid by January 2, 2024. Plaintiff's motion to compel Defendant to appear for deposition is granted. Defendant is to appear for deposition on a mutually convenient date no later than a date to be determined at the hearing. Plaintiff is awarded sanctions of \$800 against Defendant, to be made no later than January 2, 2024. Plaintiff's motion to deem admitted requests for admission, set one, served on Defendant, is denied. Motion to Compel Responses to Form Interrogatories If a party to whom interrogatories are directed fails to serve a timely response: (1) the party who has failed to provide a

	timely response waives any right to assert objections; and (2) the party propounding the interrogatories may move for an order compelling response to the interrogatories. Code Civ. Proc. § 2030.290(a) and (b). Plaintiff has made such a motion and has served it by mail on Defendant's address of record. [ROA #108 at POS.] The issue is the service of the form interrogatories, which were served on Defendant by certified mail at 1335 Cole Lane, Upland CA 91786 – that is, not the correct address according to the address of record. But: (1) it was served by certified mail; (2) the notice of deposition was served at this same address and Defendant appears to have received it since he responded by email; and (3) the RFAs were also served to that same address and, according to Plaintiff's counsel, Defendant served responses. [Garcia Decl. (ROA #108), Ex. A at POS; Garcia Decl. (ROA #109), ¶ 4 and Ex. A at POS; Garcia Decl. (ROA #107), ¶¶ 3, 4 and Ex. B.] The court finds that the form interrogatories were properly served on Defendant. So, too, was the motion to compel. Defendant did not respond to the interrogatories and has not opposed the motion. Plaintiff is therefore entitled to an order compelling Defendant to provide verified responses without objection. Code Civ. Proc. § 2030.290. Because Defendant did not timely respond, objections to the interrogatories are waived. Id. Motion to Compel Deposition Code Civ. Proc. § 2025.450(a) provides that when a party deponent is served with a deposition notice and, without having served a valid objection under Code Civ. Proc. § 2025.410, fails to appear for deposition the party giving notice may move for an order compelling the deponent's attendance and testimony at deposition. The motion must be accompanied by a declaration under Code Civ. Proc. § 2016.040 stating that the moving party contacted the deponent to inquire about the nonappearance. Code Civ. Proc. § 2025.450(b)(2). Here, Plaintiff has shown that she served a deposition notice on Defendant. He responded, asking for the date to be changed. When a second notice was served with the date change requested, Defendant failed to appear or respond despite follow up by Plaintiff's counsel. [Garcia Decl. (ROA
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		##42, 109), ¶¶ 2-6.] Plaintiff's pending motion to compel deposition has been properly served on Defendant. Plaintiff has met the requirements for an order compelling Defendant's attendance and testimony at deposition. Defendant's motion to compel is granted. Motion to Deem RFAs Admitted A propounding party may ask the court for an order that deems the matters contained in the requests for admission admitted if the receiving party fails to respond to the requests for admission. CCP § 2033.280(b). The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in conformance with CCP § 2033.220 before the hearing on the motion. CCP § 2033.280(c). If the party to whom the requests for admission are directed fails to respond, that party waives all objections, including claims of privilege and work product protection. CCP § 2033.280(a). Substantive responses to RFAs must be verified; and unverified responses are the equivalent of no response and subject to a motion to deem admitted. <i>Allen-Pacific Ltd. v. Superior Court</i> (1997) 57 Cal. App. 4th 1546, 1551 (disapproved on other ground in <i>Wilcox v. Birtwhistle</i> (1999) 21 Cal. 4th 973, 983 n. 12). But objections do not need to be verified. <i>Food 4 Less Supermarkets, Inc. v. Superior Court</i> (1995) 40 Cal. App. 4th 651, 657. If objections or hybrid responses with both objections and substantive answer are timely served, without verification, the objections are not waived. <i>Id.</i> Plaintiff does not indicate when Defendant served his RFA responses. It is not clear if he contends the responses were untimely because they were not served on time or that they were untimely because they were not verified. [See Motion MPA (ROA #33) at 4-5. It looks to me it is the latter. In any event, if Plaintiff's contention is that the objections asserted by Defendant were waived due to untimely response and Plaintiff is seeking an order for further responses, then he brought the wrong motion.
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		Where responses were timely served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. Code Civ. Proc. § 2033.290; <i>Wimberly v. Derby Cycle Corp.</i> (1997) 56 Cal. App. 4th 618, 636. This motion must be preceded by meet and confer efforts and be made within 45 days. Code Civ. Proc. § 2033.290(b), (c). The motion also must be accompanied by a separate statement. CRC 3.1345(a)(1). Here, the current record shows that Defendant served only unverified responses to RFAs, but responses that included objections. The RFAs cannot be deemed admitted in the face of the objections. Accordingly, Defendant's motion to deem RFAs admitted is denied.
104.	2022-1268760 <i>Jimenez v. FCA US, LLC.</i>	Defendant Central Valley Automotive's ("Defendant") unopposed motion to transfer venue to Stanislaus County Superior Court is GRANTED. Defendant seeks an order transferring this action to Stanislaus County pursuant to CCP 397 (c) because that is where Repair Shop resides, where the automotive sales contract was executed, where all repairs were performed, and all witnesses (including Plaintiffs) reside. Defendant contend transferring the action would promote the ends of justice and is for the convenience of witnesses. The Court may change the place of trial when the convenience of witnesses and the ends of justice would be promoted by the change. (Code Civ. Proc. § 397, subd. (c).) The moving party has the burden of proving "that both the convenience of witnesses and the ends of justice will be promoted thereby ... It is primarily a question for the trial judge whether that burden has been successfully sustained." [Citation.]” (<i>Corfee v. Southern California Edison Co.</i> (1962) 202 Cal.App.2d 473, 477, 479; <i>Minatta v. Crook</i> (1959) 166 Cal.App.2d 750, 755.) The convenience of witnesses who are employees of a party to the litigation are generally not considered on a motion for change of venue. (<i>International Inc. Co. v. Merola</i> (1959) 175 Cal.App.2d 439, 446; accord, <i>Lieberman v. Superior Court</i> (1987) 194 Cal.App.3d 396, 401.) A “limited exception has arisen allowing a court to consider the convenience of witnesses who are employees of a party. That exception obtains when the employees are called as witnesses by the